
MEMORANDUM

TO: Mayor Patrick Collins, and City Council
FROM: TJ Barttelbort, Purchasing Manager 
DATE: November 8, 2022
SUBJECT: Professional Services Agreement between the City of Cheyenne and Granite Peak Environmental for Qualified Environmental Professional Services for an USEPA Brownfield Assessment Grant

One (1) Responsive Proposal was submitted under Request for Proposal (RFP) #2-23, for the Qualified Environmental Professional Services for an USEPA Brownfield Assessment Grant project.

The proposal was received from:

1. Granite Peak Environmental. Havre, Montana.

A proposal was also submitted by Ayers Associates, however their proposal did not contain the required Federal Provisions as required by the terms of the Request for Proposal, therefore their proposal has been rejected.

Upon review of the one (1) responsive proposal by the evaluation panel, the group has recommended acceptance of the proposal submitted by Granite Peak Environmental, for a project award amount of \$488,760.00.

Basis for award was based on a Qualifications based review and scoring of proposals: Granite Peak Environmental, submitted the highest scoring proposal, therefore their sealed pricing envelope was opened.

Funding: 025-21-2111-40-46509 (Federal Grants / U.S. Environmental Protection Agency)



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Lonnie A Olson, Planner I
Subject: Professional Services Agreement between the City of Cheyenne and Granite Peak
Environmental for Qualified Environmental Professional Services for an USEPA
Brownfield Assessment Grant
Date: November 8, 2022

Background:

The item for consideration is a Professional Services Agreement between the City of Cheyenne and Granite Peak Environmental for Qualified Environmental Professional Services for an USEPA Brownfield Assessment Grant.

Staff anticipates this will build off the initial 2011 USEPA Assessment Grant that to date has resulted in tens of millions of investments in the West Edge District. The second-tier brownfields missed the funding cut during the initial grant however, the area is experiencing development interest and the likely existence of contaminants is slowing property transactions. Assessment and area-wide planning activities will be focused within the West Edge District of Cheyenne, the area stretches from Central Avenue on the east to I-25 on the west, with the Union Pacific Railyard on the south and 24th Street on the north.

The proposed Governing Body review schedule for this agreement is as follows:

- Introduction and Referral: November 14, 2022
- Finance Committee: November 21, 2022
- Final Consideration: November 28, 2022

Staff Recommendation:

Staff recommends the Governing Body approve the agreement.

City Contract No. _____

PROFESSIONAL SERVICES AGREEMENT
for
A QUALIFIED ENVIRONMENTAL PROFESSIONAL FOR
AN USEPA BROWNFIELD ASSESSMENT GRANT

This Professional Services Agreement (“Agreement”) is made and entered into by and between the **City of Cheyenne**, located at **2101 O’Neil Avenue, Cheyenne, Wyoming 82001** (“City”), and **Granite Peak Environmental**, located at **P.O. Box 2344, Havre, Montana 59501** (“Consultant”). This Agreement shall become effective upon the date of the last signature affixed hereto.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Consultant agrees to provide services for **Qualified Environmental Professional Services for An USEPA Brownfield Assessment Grant**, in accordance with **City of Cheyenne Request for Proposal (RFP) #2-23**, incorporated herein by reference, and the **Consultant’s submitted proposal**, incorporated herein by reference.

2. TIME OF PERFORMANCE

The work included in this Scope of Work will be completed by **September 30, 2025**.

3. COMPENSATION

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of **Four Hundred Eighty-Eight Thousand, Seven Hundred Sixty Dollars (\$488,760.00)** as stated in **Exhibit A – Price Proposal**.

4. CONSULTANT RESPONSIBILITY

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. DRUG-FREE WORKPLACE

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

7. INDEMNIFICATION/HOLD HARMLESS

The Consultant agrees to indemnify, hold harmless, and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of the Consultant's duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error, or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

8. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a “claims made” policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant’s services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said “claims made” coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates “claims made” coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers’ compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City’s failure to request or review such policies, endorsements, or certificates shall not affect the City’s rights or Consultant’s obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex.
10. MONTHLY REPORT
With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONSULTANT
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. REMEDIES
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:
 - a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
 - b. Treat the Agreement as continuing and require specific performance.
15. TERM AND TERMINATION
The term of this Agreement shall be from date of execution to **September 30, 2025**. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. FORCE MAJEURE.

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

24. SUPPLEMENTAL FEDERAL PROVISIONS & CLAUSES

Administration of Federal Funds. Contractor agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of 2 C.F.R. Part 200, *et seq.*; any additional requirements set forth by the federal funding agency; all applicable regulations published in the Code of Federal Regulations; and other program guidance as provided to it by the City of Cheyenne.

This Agreement has been prepared in accordance with 2 CFR 200.317-2 CFR 200.327 incorporated herein by reference.

- § 200.317 Procurements by states.
- § 200.318 General procurement standards.
- § 200.319 Competition.
- § 200.320 Methods of procurement to be followed.
- § 200.321 Contracting with small and minority businesses, women's business enterprises, and labor surplus area firms.
- § 200.322 Domestic preferences for procurements.
- § 200.323 Procurement of recovered materials.
- § 200.324 Contract cost and price.
- § 200.325 Federal awarding agency or pass-through entity review.
- § 200.326 Bonding requirements.
- § 200.327 Contract provisions.

Additionally, as this project is for the solicitation of Professional Services, the following sections shall also apply to this procurement:

2 CFR § 200.459 Professional service costs.

40 CFR PART 33 - PARTICIPATION BY DISADVANTAGED BUSINESS ENTERPRISES IN UNITED STATES ENVIRONMENTAL PROTECTION AGENCY PROGRAMS

The 'Best Practice Guide for Procuring Services, Supplies, and Equipment Under EPA Assistance Agreements' Document, RFP 2-23 Pages 33-58 is included via reference.

APPENDIX II TO PART 200 - CONTRACT PROVISIONS FOR NON-FEDERAL ENTITY CONTRACTS UNDER FEDERAL AWARDS

In addition to other provisions required by the Federal agency or non-Federal entity, all contracts made by the non-Federal entity under the Federal award must contain provisions covering the following, as applicable.

(A) Contracts for more than the simplified acquisition threshold, which is the inflation adjusted amount determined by the Civilian Agency Acquisition Council and the Defense Acquisition Regulations Council (Councils) as authorized by [41 U.S.C. 1908](#), must address administrative, contractual, or legal remedies in instances where contractors violate or breach contract terms, and provide for such sanctions and penalties as appropriate.

(B) All contracts in excess of \$10,000 must address termination for cause and for convenience by the non-Federal entity including the manner by which it will be effected and the basis for settlement.

(G) Clean Air Act ([42 U.S.C. 7401-7671q](#).) and the Federal Water Pollution Control Act ([33 U.S.C. 1251-1387](#)), as amended - Contracts and subgrants of amounts in excess of \$150,000 must contain a provision that requires the non-Federal award to agree to comply with all applicable standards, orders or regulations issued pursuant to the Clean Air Act ([42 U.S.C. 7401-7671q](#)) and the Federal Water Pollution Control Act as amended ([33 U.S.C. 1251-1387](#)). Violations must be reported to the Federal awarding agency and the Regional Office of the Environmental Protection Agency (EPA).

Environmental Policy Acts. Contractor agrees all activities under this Contract will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.

(H) Debarment and Suspension (Executive Orders 12549 and 12689) - A contract award (see [2 CFR 180.220](#)) must not be made to parties listed on the governmentwide exclusions in the System for Award Management (SAM), in accordance with the OMB guidelines at [2 CFR 180](#) that implement Executive Orders 12549 (3 CFR part 1986 Comp., p. 189) and 12689 (3 CFR part 1989 Comp., p. 235), "Debarment and Suspension." SAM Exclusions contains the names of parties debarred, suspended, or otherwise excluded by agencies, as well as parties declared ineligible under statutory or regulatory authority other than Executive Order 12549.

Suspension and Debarment. By signing this Contract, Contractor certifies that neither it nor its principals/agents are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction or from receiving federal financial or nonfinancial assistance, nor are any of the participants involved in the execution of this Contract suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension), 44 CFR Part 17, or 2 CFR Part 180, or are on the debarred, or otherwise ineligible, vendors lists maintained by the federal government. Further, Contractor agrees to notify Agency by certified mail should it or any of its

principals/agents become ineligible for payment, debarred, suspended, or voluntarily excluded from receiving federal funds during the term of this Contract.

(I) Byrd Anti-Lobbying Amendment ([31 U.S.C. 1352](#)) - Contractors that apply or bid for an award exceeding \$100,000 must file the required certification. Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay any person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, officer or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant or any other award covered by [31 U.S.C. 1352](#). Each tier must also disclose any lobbying with non-Federal funds that takes place in connection with obtaining any Federal award. Such disclosures are forwarded from tier to tier up to the non-Federal award.

APPENDIX A, 44 C.F.R. PART 18 – CERTIFICATION REGARDING LOBBYING

Certification for Contracts, Grants, Loans, and Cooperative Agreements

The undersigned certifies, to the best of his or her knowledge and belief, that:

1. No Federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of an agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.
2. If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this Federal contract, grant, loan, or cooperative agreement, the undersigned shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions.
3. The undersigned shall require that the language of this certification be included in the award documents for all subawards at all tiers (including subcontracts, subgrants, and contracts under grants, loans, and cooperative agreements) and that all subrecipients shall certify and disclose accordingly. This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by section 1352, title 31, U.S. Code. Any person who fails to file the required certification shall be subject to a civil penalty of not less than \$10,000 and not more than \$100,000 for each such failure.

The Contractor, **GRANITE PEAK ENVIRONMENTAL**, certifies or affirms the truthfulness and accuracy of each statement of its certification and disclosure, if any. In addition, the Contractor understands and agrees that the provisions of 31 U.S.C. Chap. 38, Administrative Remedies for False Claims and Statements, apply to this certification and disclosure, if any.

Signature of Contractor's Authorized Official

Name and Title of Contractor's Authorized Official

Date

25. ENTIRETY OF AGREEMENT

This Agreement consisting of eleven (11) pages, Exhibit A – Price Proposal, consisting of eight (8) pages, Request for Proposal RFP 3-23, consisting of sixty-seven (67) pages, Addendum One, consisting of three (3) pages, and the Consultant's submitted proposal, consisting of sixty-seven (67) pages, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

City of Cheyenne

(SEAL)

By: _____
Patrick Collins, Mayor

Attest:

Kristina F. Jones, City Clerk

Date: _____

Consultant

By: _____

Print Name: _____

Date: _____

October 12, 2022

City of Cheyenne, Wyoming
Purchasing Office, Attn: TJ Barttelbort
2101 O'Neil Avenue, Rm. 309
Cheyenne, WY 82001

Dear Mr. Barttelbort:

Granite Peak Environmental, LLC ("Granite Peak") is pleased to submit this proposal for Qualified Environmental Professional (QEP) Services to assist the City of Cheyenne, Wyoming ("City") with its recent award of a Community-Wide Assessment Grant from the U.S. Environmental Protection Agency (USEPA).

To achieve the city's goals and objectives for the West Edge District assessment project, Granite Peak has assembled a team of industry and local experts with the knowledge and expertise to move sites from assessment to cleanup and eventual redevelopment, including DHM Design, GLM Design, and Atlas Technical Consultants.

Enclosed is our Price Proposal, which includes a line item budget for all phases of the work listed in the Scope of Work, with a breakdown of each phase as well as individual fee schedules for each team member. Please note the price proposal provides general estimates for each task as outlined in the technical proposal and is not intended to act as a final estimate given our limited knowledge on site conditions, development plans, and landowner goals at this time. If contracted as the city's QEP, Granite Peak will provide the city with a formal, final line item estimate that takes into account site conditions, sampling plans, logistics, and any specific goals or requests outlined by the city/landowner/developer prior to commencing with any task or deliverable.

Key notes on the line item budget (attached):

- Granite Peak staff have agreed to donate their travel time for the public workshops under the public outreach task.
- Actual number of Phase Is, Phase IIs, ABCAs, VRP sites, Redevelopment plans, etc. may change depending on landowner participation in the City of Cheyenne's Brownfields Assessment Program.
- The estimate assumes 16 Phase Is will be completed, per the city's RFP. These costs are based on the expectation that EPA will approve and require Phase I ESAs to be completed in accordance with the new ASTM E1527-21, which requires additional historical research compared to the previous standard, ASTM 1527-13. The average cost of a Phase I is estimated at \$5,550.
- The Phase II ESA estimate assumes that 4 Building Materials Inspections (BMIs) will be completed to evaluate the presence of asbestos, lead-based paint, PCBs, and mercury in the buildings at an average cost of \$15,000. It also assumes 3 subsurface sampling

- investigations will be completed at an average cost of \$35,000. Actual costs for Phase II ESAs will depend on suspected contamination, site conditions, number of samples, etc. as outlined in the Sampling and Analysis Plans.
- In the event of a budget surplus on a task/deliverable, excess funds may be applied to other tasks and/or deliverables, as requested and directed by the city.

Granite Peak Environmental, DHM Design, GLM Design, and Atlas Technical Consultants are jointly and severally obligated to perform the obligations of the Professional Services Agreement with the City of Cheyenne, should our team be selected as the city's QEP. We certify that our price proposal shall remain valid for a period of 120 days from the date of this proposal.

Thank you for the opportunity to submit this proposal. Please feel free to contact me on my cell phone (406.253.0756) or the number listed below with any questions.

Sincerely,



Christin Hileman, President

Price Proposal

Project: EPA Brownfields FY22 Assessment Grant - QEP Services

Client: City of Cheyenne, Wyoming

Date: October 12, 2022



Description	Quantity	Units	Hourly Rate	Total
Task 1 - Public Outreach				
Task 1a. Fact Sheets¹				
Project Manager	10	hours	\$120	\$1,200
Staff Scientist I	40	hours	\$80	\$3,200
Total Task 1a				\$4,400
Task 1b. Website²				
Principal (DHM)	8	hours	\$195	\$1,560
Designer (DHM)	34	hours	\$115	\$3,910
Total Task 1b				\$5,470
Task 1c. Social Media³				
Principal (DHM)	8	hours	\$195	\$1,560
Designer (DHM)	20	hours	\$115	\$2,300
Total Task 1c				\$3,860
Task 1d. Press Releases⁴				
Project Manager	4	hours	\$120	\$480
Staff Scientist I	24	hours	\$80	\$1,920
Total Task 1d				\$2,400
Task 1e. Public Workshops⁵				
Principal	20	hours	\$150	\$3,000
Project Manager ⁶	80	hours	\$120	\$9,600
Principal (DHM)	16	hours	\$195	\$3,120
Principal (GLM)	20	hours	\$130	\$2,600
Brownfields Coordinator (Atlas)	20	hours	\$125	\$2,500
Mileage	9000	miles	\$0.625	\$5,625
Lodging	15	days	\$150	\$2,250
Per Diem	25	days	\$35	\$875
Total Task 1e				\$29,570
Task 1f. Site Inventory⁷				
Project Manager	8	hours	\$120	\$960
Staff Scientist I	32	hours	\$80	\$2,560
Total Task 1f				\$3,520
Task 1g. One-on-One Meetings⁸				
Project Manager	40	hours	\$120	\$4,800
Total Task 1g				\$4,800
Total Task 1				\$54,020
Task 2 - Site Assessment				
Task 2a. QAPP and BMS Guide⁹				
Principal	8	hours	\$150	\$1,200
Project Manager	16	hours	\$120	\$1,920
Staff Scientist III	40	hours	\$100	\$4,000
Total Task 2a				\$7,120
Task 2b. Phase I ESAs¹⁰				
Principal	64	hours	\$150	\$9,600
Project Manager	64	hours	\$120	\$7,680
Staff Scientist III	512	hours	\$100	\$51,200

Staff Scientist (Atlas)	128	hours	\$95	\$12,160
Mileage	3200	miles	\$0.625	\$2,000
Per Diem	16	days	\$35	\$560
EDR Reports	16	ls	\$350	\$5,600
Total Task 2b				\$88,800
Task 2c. Phase II ESAs¹¹				
Phase II Building Material Investigations	4	ls	\$15,000	\$60,000
Phase II Subsurface Investigations	3	ls	\$35,000	\$105,000
Total Task 2c				\$165,000
Total Task 2				\$260,920
Task 3 - Redevelopment Planning				
Task 3a. Stormwater & Green Energy Evaluation¹²				
Principal (GLM)	160	hours	\$130	\$20,800
Total Task 3a				\$20,800
Task 3b. 3-D Models and Site Renderings¹³				
Principal (DHM)	92	hours	\$195	\$17,940
Designer (DHM)	280	hours	\$115	\$32,200
Total Task 3b				\$50,140
Task 3c. Redevelopment Plans¹⁴				
Principal (DHM)	24	hours	\$195	\$4,680
Principal (GLM)	32	hours	\$130	\$4,160
Designer (DHM)	160	hours	\$100	\$16,000
Total Task 3c				\$24,840
Total Task 3				\$95,780
Task 4 - Cleanup Planning				
Task 4a. ABCAs¹⁵				
Principal	20	hours	\$150	\$3,000
Project Manager	40	hours	\$120	\$4,800
Staff Scientist III	100	hours	\$100	\$10,000
Total Task 4a				\$17,800
Task 4b. WDEQ VRP Correspondence¹⁶				
Project Manager	40	hours	\$120	\$4,800
Total Task 4b				\$4,800
Total Task 4				\$22,600
Task 5 - Grant Management Assistance¹⁷				
Project Manager	72	hours	\$120	\$8,640
Total Task 5				\$8,640
Task 6 - Project Management¹⁸				
Principal	72	hours	\$150	\$10,800
Project Manager	300	hours	\$120	\$36,000
Total Task 6				\$46,800
Total - All Tasks				\$488,760

Notes/Assumptions:

1. Proposal assumes 4 fact sheets; digital copies only
2. Proposal assumes a new, interactive website will be developed by DHM Design.
3. Estimate assumes 36 social media updates and posts.
4. Estimate assumes 2 press releases.
5. Estimate assumes 5 workshopsto be held for an estimated 2 hours each. Prep time and travel for GPE project manager and one teaming partner included.
6. Estimate assumes all of Granite Peak's travel time is donated, a value of roughly \$14,500.
7. Estimate assumes one site inventory list with site prioritization criteria included; digital copies only.
8. Estimate assumes 40 one-hour one-on-one meetings with landowners, developers, etc.

9. Estimate assumes 2 rounds of edits from EPA and DEQ and includes EPA crosswalk.
10. Estimate assumes 16 Phase I ESAs in accordance with ASTM e1527-21.
11. Estimate assumes 4 Phase II Building Materials Inspections and 3 Phase II Subsurface Investigations. Average cost per BMI is \$15,000. Average cost of Phase II Subsurface Investigations is estimated at \$35,000.
12. Estimate assumes 4 sites will require stormwater and green energy evaluation.
13. Estimate assumes 4 sites will receive 3-D modeling and site renderings.
14. Estimate assumes 4 sites will receive redevelopment plans.
15. Estimate assumes 5 ABCAs.
16. Estimate assumes 5 sites will require MDEQ VRP correspondence.
17. Estimate assumes grant management will include quarterly and annual reports, ACRES reporting, and site eligibility forms.
18. Estimate assumes project management will include weekly e-mail updates, budget tracking, and client meetings and correspondence.

Granite Peak Environmental

Brownfields Rate Sheet

August 2022



Description	Title	Rate / hour
Administration	Administrative Assistant	\$60.00
Project Assistant	Project Assistant I	\$70.00
	Project Assistant II	\$80.00
Technician (Geologist, Engineer, Scientist)	Technician I	\$70.00
	Technician II	\$80.00
	Technician III	\$90.00
GIS Specialist	GIS Specialist I	\$70.00
	GIS Specialist II	\$80.00
	GIS Specialist III	\$90.00
Staff (Geologist, Engineer, Scientist)	Staff I	\$80.00
	Staff II	\$90.00
	Staff III	\$100.00
Project Manager (Geologist, Engineer, Scientist)	Project I	\$120.00
	Project II	\$130.00
	Project III	\$140.00
Senior (Geologist, Engineer, Scientist)	Senior I	\$140.00
	Senior II	\$150.00
	Senior III	\$160.00
Principal (Geologist, Engineer, Scientist)	Principal I	\$150.00
	Principal II	\$160.00
	Principal III	\$170.00
Markup (eligible expenses, dependent on client contract)	Laboratory Analysis	10%
	Equipment	
	Vehicle Costs	
	Fuel	
	Hotels	
	Subcontractors	

DHM DESIGN

LANDSCAPE ARCHITECTURE | LAND PLANNING | ECOLOGICAL PLANNING | URBAN DESIGN

FEE STRUCTURE

DHM Design Corporation

Effective January 1, 2022

Hourly Rates

Principal Landscape Architect/Planner	\$155.00 - \$190.00
Principal Ecologist	\$190.00
Associate Principal	\$140.00
Senior Associate	\$125.00
Associate	\$115.00
Natural Resources Coordinator	\$140.00
Visualization/3D	\$130.00
Senior Designer/Planner	\$105.00
Designer	\$100.00
Graphic Designer	\$95.00
Ecological Technician	\$95.00
Clerical/Word Processing	\$80.00

Reimbursable Expenses

Xerox Copies	\$ 0.12 per copy
Color Copies	\$ 1.50 per copy
In-House Computer Plots	
- Mylar	\$ 3.50 per square foot
- Vellum	\$ 2.30 per square foot
- Bond	\$ 0.45 per square foot
Color Computer Plots	\$ 2.80 per square foot
Mileage	Published Federal Rate
Standardized field equipment	\$80/day
- GNSS receiver, GPS, iPad	
Specialized field equipment	\$120/day
- RTK survey grade equipment, GNSS receiver	
iPad (cellular connection), Drone	

All outside reimbursable expenses such as printing, copying, postage and deliveries are billed at our direct costs.

All sub-consultants will be billed at our direct cost plus 4% administrative charge.

Bills are rendered and due payable monthly. Terms: Due and payable within 45 days upon receipt of statements. 1.5% per month interest charged on all past due accounts.

Proposal price quotes shall remain in effect for a period of six months with renegotiation of hourly rates and reimbursable expenses at that time.



Labor and Expense Rate Schedule 2022

Labor Classification		Hourly Bill Rate
Senior Geologist/Engineer/Hydrogeologist/Hygienist/Scientist/Modeler		\$150
Project Geologist/Engineer/Hydrogeologist/Hygienist/Scientist		\$125
Project Manager		\$125
Staff Geologist/Engineer/Hydrogeologist/Hygienist/Scientist		\$95
Field Technician		\$85
Draftsperson/CADD/GIS		\$85
Project Accountant/Project Controller		\$75
Equipment & Laboratory Expenses	Unit	Rate
Disposable Sampling Equipment	Day	\$25
Water Level Indicator	Day	\$35
pH/Conductivity Meter	Day	\$25
Photoionization Detector	Day	\$95
Per Diem	Day	\$50
Per Diem (1/2 Day)	1/2 Day	\$35
PLM Analysis, 3-5 Day Turn around	Per Test	\$12
PLM Analysis, 24-hour turn around	Per Test	\$15
PLM Analysis, Rush Turn around	Per Test	\$25
Microscopic Examination spore trap samples – 48 hr. turn around	Per Test	\$30
Microscopic Examination spore trap samples - Rush turn around	Per Test	\$50
LBP Dust Clearance Sample Rush Turn Around	Per Test	\$40
PCM Analysis Rush Turn Around	Per Test	\$13
PLM Point Count-6 hr turn around	Per Test	\$25
PLM Point Count-24 hr turn around	Per Test	\$30
PLM Point Count-3-5 day turn around	Per Test	\$18
LBP Wipes Samples 3-5 day turn around	Per Test	\$8
Other Reimbursable Expenses	Unit	Rate
Personal Vehicle Use (or Current Federal Rate)	mile	\$0.62
Company-owned Vehicle	day	\$90
Laboratory Analyses	Each	Cost plus 10%
Rental Car	day	at cost
Lodging	day	at cost
Other Direct Costs and Overtime:		
1. Subcontractor and subconsultant direct costs will be invoiced at cost +10%.		
2. Equipment use, rental and supplies not otherwise listed will be invoiced at cost +10%.		
3. Overtime rates will apply to non-exempt employees in accordance with applicable laws & regulations.		